

VENDOR SERVICES AGREEMENT

This Vendor Services Agreement ("Agreement") is entered into on 01 January 2025 between Prime Technologies Pvt. Ltd., having its registered office in India ("Client"), and Verger Delporte LLC, incorporated under the laws of Delaware, USA ("Vendor").

1. Scope of Services

The Vendor shall provide software development and support services as agreed in writing. All services shall be performed in a professional and workmanlike manner.

2. Payment Terms

- 2.1 Payment shall be made within thirty (30) days from the date of receipt of a valid invoice.
- 2.2 No late payment penalty or interest shall apply.
- 2.3 All payments shall be made in INR via bank transfer.

3. Term and Termination

- 3.1 This Agreement shall remain valid for a period of one (1) year.
- 3.2 Either party may terminate this Agreement with thirty (30) days written notice.
- 3.3 Immediate termination may occur in case of material breach.

4. Limitation of Liability

- 4.1 The total liability of either party shall be limited to the fees paid in the last twelve (12) months.
- 4.2 Neither party shall be liable for indirect, incidental, or consequential damages.

5. Indemnification

Each party shall indemnify the other only for third-party claims arising from gross negligence or willful misconduct.

6. Confidentiality

All confidential information disclosed shall remain confidential for five (5) years from the date of disclosure.

7. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Courts located in Bengaluru shall have exclusive jurisdiction.

8. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements.